

Md. Irsad v. State of U.P. and 2 Others

High Court of Judicature at Allahabad · Division Bench · 23 May 2023 · 2023:AHC:112909-DB · Writ - C No. 17632 of 2023 · **Notice not quashed; finalize s.126 assessment per Supply Code**

HEADNOTE

A writ will not quash a Section 126 provisional-assessment notice once the consumer has replied and the final assessment is still pending. The assessing officer must finalize those proceedings strictly under the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Md. Irsad approached the Allahabad High Court against a notice of provisional assessment dated 16 February 2023, issued by respondent no. 3 under Section 126 of the Electricity Act, 2003. He had already filed his reply to that notice. No order of final assessment had been passed when the writ was taken up. The State of Uttar Pradesh and two other respondents were on the array.

HOLDING-UNITS

INTERPLAY · EA2003::126

Premature writ against a provisional Section 126 assessment

HOLDING

Where the consumer has replied to a notice of provisional assessment under Section 126 and the final assessment order has not yet been passed, no occasion arises to quash that notice. The assessing officer must finalize the proceedings strictly in accordance with the procedure prescribed under the U.P. Electricity Supply Code, 2005. ¶ 1-3

PRINCIPLE TAGS

premature-writ-against-provisional-s126-assessment The 16 February 2023 provisional assessment notice was left standing because the reply was already in and the final assessment was yet to be made; respondent no. 3 was directed only to complete the proceedings under the Supply Code. ¶ 1-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PROVISIONAL ASSESSMENT DATED 16 FEBRUARY 2023 WAS JUSTIFIED ON THE MERITS

The final assessment had not been passed. The authority was left to finalize the proceedings under the Supply Code. ¶ 2-3